

4.	26CV0566	BENJAMIN CROCKER VS. CITY OF SOUTH LAKE TAHOE
DEMURRER		

Defendants, City of South Lake Tahoe and Doug Sentell (collectively “Defendants”), demurrer to Plaintiff’s, Benjamin Crocker (“Plaintiff”), Complaint. On September 9, 2026, Plaintiff filed an Opposition. Defendants’ Reply was filed September 10, 2026.

Request for Judicial Notice

Defendants seek judicial notice of the following: 1) *The People of the State of California v. Benjamin David Crocker*, Case No. 22CR0245, Criminal Complaint filed February 17, 2022; 2) *The People of the State of California v. Benjamin David Crocker*, Case No. 22CR0245, Amended Criminal Complaint filed March 4, 2025; 3) *The People of the State of California v. Benjamin David Crocker*, Case No. 22CR0245, Jury Verdict Minutes and Sentencing Order; 4) *The People of the State of California v. Benjamin David Crocker*, Case No. 22CR0245, Order on Probation; and 5) Plaintiff’s November 18, 2025 Government Claim stamped as received November 25, 2025.

Judicial notice is a mechanism which allows the Court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including, but not limited to, “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.”

Section 452 provides that the court “may” take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court “shall” take judicial notice of any matter “specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter.” Cal. Evid. Code § 453.

While the request made by Defendants fall within the purview of Section 452, matters which *may* be judicially noticed, the Court does find that Defendants provided Plaintiff and the Court sufficient notice of the request and copies of the documents requested to be noticed. As such, Defendants have satisfied the requirements of Evidence Code § 453 and the request for judicial notice is granted.

Meet and Confer Requirement

Code of Civil Procedure §430.41(a) provides: Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party

who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.

Code of Civil Procedure §430.41(a)(3):

The demurring party shall file and serve with the demurrer a declaration stating either of the following:

(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer.

(B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.

Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal. App. 5th 348 (“If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort”).

Based on the Declaration of Matthew W. Gross, counsel attempted to meet and confer with Plaintiff prior to filing, but Plaintiff did not respond.

Background

On March 3, 2026, Plaintiff filed a Complaint alleging causes of action for 1) Unreasonable Search and Seizure – Excessive Force (42 U.S.C. § 1983); 2) Bane Act (Cal. Civ. Code § 52.1) California Tort Claims Act, Cal. Gov’t Code §§ 815.2, 820; 3) Article 1, § 13 of the California Constitution; 4) Negligence Cal. Govt. Code § 820 and California Common Law; 5) Municipal Liability for Unconstitutional Custom or Policy (42 U.S.C. § 1983); and 6) Battery (Cal. Govt. Code § 820 and California Common Law).

Legal Principles

[A] demurrer challenges only the legal sufficiency of the complaint, not the truth or the accuracy of its factual allegations or the plaintiff’s ability to prove those allegations.” (*Amarel v. Connell* (1998) 202 Cal.App.3d 137, 140.) A demurrer is directed at the face of the complaint and to matters subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) All properly pleaded allegations of fact in the complaint are accepted as true, however improbable they may be, but not the contentions, deductions or conclusions of facts or law. (*Blank v. Kirwan* (1985) 39 Cal.3d gives “the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Blank, *supra*, 39 Cal.3d at p. 318.)

Discussion

Defendants argue that Plaintiff's claim accrued on December 3, 2021, and did not file the Complaint until March 3, 2026. Therefore, the state common law claims for negligence, CA Constitution, Bane Act, and the federal law claims are all untimely.

A claim relating to a cause of action for death or for injury to person...shall be presented as provided in Article 2 (commencing with Section 915) not later than six months after the accrual of the cause of action. A claim relating to any other cause of action shall be presented as provided in Article 2 (commencing with Section 915) not later than one year after the accrual of the cause of action. Government Code § 911.2.

Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board, in accordance with Chapters 1 and 2 of Part 3 of this division. Government Code § 945.4.

Reading the Complaint as a whole, the Court finds that Plaintiff's causes of action all stem from either the alleged use of force by South Lake Tahoe Police Officers on December 3, 2021, or the alleged use of force by Amador County Sheriff Deputies on October 29, 2025, which does not relate to a claim against Defendants.

Plaintiff's Second, Third, Fourth, and Sixth Causes of Action all require compliance with Government Code § 911.2 prior to bringing suit. Plaintiff's allegations against Defendants stem from an incident on December 3, 2021. Plaintiff's Government Claim was not received until November 25, 2025, well after the time period required. As such, Plaintiff's claims are time barred.

Plaintiff's First and Fifth Causes of Action are subject to a two-year statute of limitations and are accordingly time barred, as the Complaint was not filed until over four years after the alleged incident.

Defendants' demurrer as to all causes of action is sustained without leave to amend, finding no reasonable possibility to cure the defect.

TENTATIVE RULING #4:

DEFENDANTS' DEMURRER IS SUSTAINED WITHOUT LEAVE TO AMEND.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.

September 18, 2026
Dept. 9
Civil Tentative Rulings

RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.